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File No.: EXP202306050

SANCTIONING PROCEDURE RESOLUTION

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: As a result of a complaint filed with the Spanish Agency for Data Protection, indications of a possible breach of the provisions of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) were noted, leading to the initiation of actions under file number EXP202206008. In accordance with the provisions of Article 65 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (LOPDGDD hereinafter), the complaint was forwarded to ALBEN AIRPORT FACILITIES S.L with NIF B45850336 (hereinafter, the complained party), requesting that it send to this Agency the information and documentation indicated. This request for information was not answered within the stipulated time. The complaint was admitted for processing on August 16, 2022.

SECOND: The General Sub-Directorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the investigative powers granted to control authorities in Article 57.1 of the GDPR, and in accordance with the provisions established in Title VII, Chapter I, Section two, of the aforementioned LOPDGDD.

In the framework of the investigative actions, four requests for information were sent to the complained party, related to the complaint mentioned in the first section, requesting that, within ten working days, it present to this Agency the information and documentation specified therein. The first two requests were registered for dispatch on February 17, 2023, and March 1, 2023, while the third and fourth requests were registered for dispatch on March 31, 2023.

THIRD: The requests for information were notified in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP).

The first of them was sent by electronic notification and was not collected by the responsible party within the availability period, as stated in the acknowledgment of receipt in the file, thus being considered rejected in accordance with the provisions of Article 43.2 of the LPACAP on February 28, 2023.

Although the notification was validly carried out by electronic means, considering the procedure completed in accordance with the provisions of Article 41.5 of the LPACAP, an informational copy of the request was sent by postal mail, which was returned to the sender by Correos as unknown on March 13, 2023, as stated in the acknowledgment of receipt in the file.

The last two requests were collected by the complained party on March 31, 2023, as stated in the acknowledgments of receipt in the file.

FOURTH: Regarding the requested information, the complained party has not sent any response to this Spanish Agency for Data Protection.

FIFTH: On May 31, 2023, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the complained party for the alleged infringement of Article 58.1 of the GDPR, classified under Article 83.5 of the GDPR.

The initiation agreement was notified to the complained party, in accordance with the rules established in the LPACAP, through an announcement published in the Official State Gazette dated June 28, 2023, after two unsuccessful attempts at postal notification. On July 16, 2023, the complained party accessed the notification of the aforementioned initiation agreement through the Single Authorized Electronic Address (DEHÚ), as stated in the acknowledgment of receipt in the file.

SIXTH: Once the aforementioned initiation agreement was notified in accordance with the rules established in the LPACAP and the period granted for the submission of allegations had elapsed, it has been confirmed that no allegations have been received from the complained party.

Article 64.2.f) of the LPACAP - a provision of which the complained party was informed in the initiation agreement - establishes that if no allegations are made within the stipulated period regarding the

content of the initiation agreement, when it contains a precise statement regarding the responsibility attributed, it may be considered a proposal for resolution. In this case, the initiation agreement of the sanctioning file determined the facts on which the accusation was based, the infringement of the GDPR attributed to the complained party, and the sanction that could be imposed. Therefore, considering that the complained party has not made allegations against the initiation agreement of the file and in accordance with the provisions of Article 64.2.f) of the LPACAP, the aforementioned initiation agreement is considered in this case as a proposal for resolution.

SEVENTH: According to the report obtained from the AXESOR tool, the entity ALBEN AIRPORT FACILITIES S.L is an SME (Microenterprise), established in 2016, with a turnover of 66,163 euros in 2021.

In view of all the actions taken, the following facts are considered proven by the Spanish Agency for Data Protection in the present procedure,

PROVEN FACTS

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FIRST: The information requests indicated in the first, second, and third recitals were notified in accordance with the provisions of the LPACAP.

SECOND: The respondent has not responded to the information requests made by this Agency within the deadlines granted for that purpose in the context of the investigation proceedings of file EXP202206008.

THIRD: The initiation agreement of the present sanctioning procedure was notified to the respondent, in accordance with the provisions of Article 44 of the LPACAP, by means of an announcement published in the Official State Gazette dated June 28, 2023, after two unsuccessful delivery attempts at the postal address. On July 16, 2023, the respondent accessed the notification of the aforementioned initiation agreement through the DEHÚ service.

FOURTH: The respondent has not submitted allegations to the initiation agreement of this sanctioning procedure.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Data Protection Agency is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Breach of Obligation

In accordance with the evidence available, it is considered that the respondent has not provided the information requested by the Spanish Data Protection Agency.

With the aforementioned conduct of the respondent, the investigative power conferred to supervisory authorities by Article 58.1 of the GDPR, in this case, the AEPD, has been obstructed.

Therefore, the facts described in the "Proven Facts" section are deemed to constitute an infringement, attributable to the respondent, for violation of Article 58.1 of the GDPR, which states that each supervisory authority shall have, among its investigative powers:

“a) to order the controller and the processor and, where applicable, the representative of the controller or the processor, to provide any information necessary for the performance of its functions; b) to carry out investigations in the form of data protection audits; c) to carry out a review of the certifications issued under Article 42, paragraph 7; d) to notify the controller or the processor of the alleged infringements of this Regulation; e) to obtain from the controller and the processor access to all personal data and all information necessary for the exercise of its functions; f) to obtain access to all premises of the controller and the processor, including any equipment and means of processing data, in accordance with the procedural law of the Union or of the Member States.”

III

Classification and Qualification of the Infringement

In accordance with the evidence available, the facts presented are deemed to constitute an infringement, attributable to the respondent.

This infringement is classified under Article 83.5.e) of the GDPR, which considers as such: “failure to provide access in violation of Article 58, paragraph 1.”

The same article establishes that this infringement may be sanctioned with a fine of up to twenty million euros (€20,000,000) or, in the case of an enterprise, an amount equivalent to four percent (4%) of the total annual global turnover of the previous financial year, opting for the higher amount.

For the purposes of the statute of limitations for infringements, the infringement attributed prescribes after three years, in accordance with Article 72.1 of the LOPDGDD, which qualifies the following conduct as very serious:

“ñ) Failure to provide access to the personal data, information, premises, equipment, and means of processing required by the competent data protection authority for the exercise of its investigative powers.

o) Resistance or obstruction of the exercise of the inspection function by the competent data protection authority.”

IV

Imposed Sanction

The fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with the provisions of Article 83.1 of the GDPR. Consequently, the sanction to be imposed must be graduated according to the criteria established in Article 83.2 of the GDPR, and in accordance with the provisions of Article 76 of the LOPDGDD, regarding paragraph k) of the aforementioned Article 83.2 GDPR.

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It is noted that no mitigating or aggravating circumstances apply.

In light of the facts presented, it is considered appropriate to impose a sanction on the respondent for the violation of Article 58.1 of the GDPR as classified in Article 83.5 e) of the GDPR. The sanction to be imposed is an administrative fine in the amount of 500.00 euros.

Therefore, in accordance with the applicable legislation, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on ALBEN AIRPORT FACILITIES S.L., with NIF B45850336, for a violation of Article 58.1 of the GDPR, classified in Article 83.5 of the GDPR, a fine of 500.00 euros (FIVE HUNDRED euros).

SECOND: TO NOTIFY this resolution to ALBEN AIRPORT FACILITIES S.L.

THIRD: This resolution will be enforceable once the period for filing the optional appeal for reconsideration (one month from the day following the notification of this resolution) has expired without the interested party having exercised this right.

The sanctioned party is warned that they must pay the imposed sanction once this resolution becomes enforceable, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the

Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, into the restricted account No.

IBAN: ES00-0000-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period.

Upon receipt of the notification and once enforceable, if the date of enforceability falls between the 1st and the 15th of each month, inclusive, the deadline for making the voluntary payment will be until the 20th of the following month or the next business day thereafter, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day thereafter.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file an appeal for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative process may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension terminated.

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Mar España Martí

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